

viction. There would always be a question of possible civil action in case the prosecutor saw fit to move dismissal of the case. . . . The apprehension of such consequences would tend toward great uneasiness and toward weakening the fearless and impartial policy which should characterize the administration of this office. The work of the prosecutor would thus be impeded and we would have moved away from the desired objective of stricter and fairer law enforcement." *Pearson v. Reed*, 6 Cal. App. 2d 277, 287, 44 P. 2d 592, 597 (1935).

See also *Yaselli v. Goff*, 12 F. 2d, at 404-406.

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The common-law rule of immunity is thus well settled.²¹ We now must determine whether the same considerations of public policy that underlie the common-law rule likewise countenance absolute immunity under § 1983. We think they do.

If a prosecutor had only a qualified immunity, the threat of § 1983 suits would undermine performance of his duties no less than would the threat of common-law suits for malicious prosecution. A prosecutor is duty bound to exercise his best judgment both in deciding which suits to bring and in conducting them in court. The public trust of the prosecutor's office would suffer if he were constrained in making every decision by the consequences in terms of his own potential liability in a

²¹ See, e. g., *Gregoire v. Biddle*, 177 F. 2d 579 (CA2 1949), cert. denied, 339 U. S. 949 (1950); *Cooper v. O'Connor*, 69 App. D. C. 100, 99 F. 2d 135, 140-141 (1938); *Anderson v. Rohrer*, 3 F. Supp. 367 (SD Fla. 1933); *Pearson v. Reed*, 6 Cal. App. 2d 277, 44 P. 2d 592 (1935); *Anderson v. Manley*, 181 Wash. 327, 43 P. 2d 39 (1935). See generally Restatement of Torts § 656 and comment b (1938); 1 F. Harper & F. James, *The Law of Torts* § 4.3, pp. 305-306 (1956).